

Justification for an Exception to Fair Opportunity

1. **AGENCY AND CONTRACTING ACTIVITY:** This is a Justification for an Exception to Fair Opportunity Process. The requiring activity is the Public Works Department; the contracting activity is the Naval Facilities Engineering Systems Command Southwest (NAVFAC SW), Facilities Engineering and Acquisition Division (FEAD) San Diego.

2. **DESCRIPTION OF CONTRACT ACTION:**

- ☐ New Requirement ☐ Follow-on Order
- ☐ Existing Order Number:
- ☒ Order against: Multiple Award ID/IQ Contract Number:

N62473-21-D-3603

- ☐ Pricing ☐ Firm-Fixed Price ☐ Time & Materials ☐ Cost Type
- ☒ Funds: [REDACTED] ☐ Other Funds:

3. **DESCRIPTION OF REQUIRED SUPPLIES/SERVICES:** The proposed acquisition is to issue a sole source task order under the Multiple Award Service Contract (MASC) N62473-21-D-3602 to Chugach Consolidated Solutions, LLC (Chugach) (Cage Code: 6XZF0) without affording fair opportunity to other MASC awardees pursuant to the authority identified in Section 4 of this Justification and Approval (J&A). The proposed acquisition is to acquire services for termite tenting of Building 76, a historical building constructed with a wooden structure at Naval Base San Diego (NBSD). The urgent need is to prevent termites from causing further extensive damage to the building structure.

[REDACTED]
[REDACTED] The performance period to complete the required work will be 45 days. The task order will be funded by [REDACTED]

4. **AUTHORITY AND DEMONSTRATION THAT NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:** The statutory authority is 10 United States Code (U.S.C.) Section 3406(c), as implemented by FAR 16.505(b)(2). The Contracting Officer shall give every awardee a fair opportunity to be considered for a delivery/task order exceeding the micro-purchase threshold, unless one of the following statutory exceptions applies:

- ☒ The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays [FAR 16.505(b)(2)(i)(A)];
- ☐ Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized [FAR 16.505(b)(2)(i)(B)];

SOURCE SELECTION INFORMATION – SEE FAR 2.101 and 3.104

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- ☐ The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order [FAR 16.505(b)(2)(i)(C)];
- ☐ It is necessary to place the order to satisfy a minimum guarantee [FAR 16.505(b)(2)(i)(D)]; or
- ☐ For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that purchase be made from a specified source [FAR 16.505(b)(2)(i)(E)]

Rationale/explanation to support cited authority: Immediate action is required to perform termite tenting at Building 76, a historical building with a wooden structure that is vulnerable to termite infestation. Termite tenting is urgently required in order to kill the termites that are causing extensive damage to the building's wooden structure. Failure to perform the termite tenting will create unacceptable health and safety risks to users of a building that is not structurally sound, as the termites will continue to damage the wooden structure. In addition, space is limited on NBSD, and finding a new location for a very large tenant is not a feasible solution.

Pursuant to the authority of 10 U.S.C. Section 3406(c)(1), as implemented by FAR 16.505(b)(2)(i)(A). Exceptions to the fair opportunity process, the contracting officer shall give every awardee a fair opportunity to be considered for a delivery order or task order exceeding the micro-purchase threshold unless one of the following statutory exceptions applies: (A) The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays. This J&A requests the authority to award a one-time sole source task order to Chugach without affording fair opportunity to other MASC awardees based on unusual and compelling urgency. Chugach is currently onsite performing service work in and around Building 76, and they are capable of performing the work within the required time. Chugach has performed and is performing successfully other service contracts with a similar scope.

5. FAIR AND REASONABLE COST DETERMINATION: The Contracting Officer has determined the anticipated cost to the Government of the services covered by this justification will be fair and reasonable.

6. ANY OTHER FACT SUPPORTING THE JUSTIFICATION: In accordance with FAR 5.202(a)(2) and FAR 5.202(a)(6), a notice of the proposed acquisition will not be published because of the extreme urgency of this project as noted above and the Government would incur unacceptable delays if the agency complies with the standard procedures to solicit to all MASC awardees, and adheres to the time periods and other procedural requirements specified for soliciting the required work in accordance with FAR 5.203 – Publicizing and Response Time.

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7. ACTIONS TO INCREASE COMPETITION: The contract action is an urgent one-time, sole-source procurement for the termite tenting at Building 76. Following the successful completion of the termite tenting for this building, there should not be a further need for the required work. If NAVFAC SW determines that additional termite tenting is required, a competitive solicitation will be issued to meet the need of NBSD.

8. TECHNICAL/REQUIREMENTS/FUNCTIONAL LEAD CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification is complete and accurate to the best of my knowledge and belief.

Signature:

Name/Title

9. LEGAL SUFFICIENCY REVIEW

I have reviewed and determined this Justification is legally sufficient.

Signature

Name/Title

Upon the basis of the above justification, I hereby approve the Exception to Fair Opportunity for the proposed procurement(s) described herein using pursuant to the 10 U.S.C. Section 3406(c), as implemented by FAR 16.505(b)(2).

10. ACTIVITY CONTRACTING OFFICER APPROVAL

Signature:

Name/Title